

		Defendant's special interrogatories at issue are straightforward and relate directly to Plaintiff's contentions in her complaint. It is Plaintiff's burden to justify her objections, and she has not done so. No opposition was filed. Therefore, the motion is granted. Plaintiff is ordered to serve further responses to Defendant's special interrogatories numbered 46 – 79 within 20 days of service of the notice of this ruling. Defendant is awarded \$1,350.00 in monetary sanctions against Plaintiff and her counsel to be paid within 30 days. (Code Civ. Proc., § 2030.300(d).)
6	Keller v. E & G Aesthetic Institute, Inc. 2025-01534928	Defendants E&G Aesthetic Institute, Inc. and Mariaelena Gavilanes' motion for order compelling plaintiff Christina Keller to arbitrate her claims in this action is granted. [ROA #15.] These proceedings will be stayed pending completion of arbitration. Facts This is essentially an action for medical malpractice. Plaintiff asserts claims on her own behalf and as successor in interest to her decedent. The complaint contains two causes of action: (1) wrongful death based on medical malpractice (CCP 377.60) and (2) medical malpractice through survival action (CCP 377.20). [Complaint (ROA #2).] Prior to obtaining medical care from Defendants, Plaintiff's decedent signed an arbitration agreement with E&G Aesthetic Institute, Inc. [Crespo Decl. (ROA #15), ¶ 3 and Ex. 2; Gavilanes Decl. (ROA #15), ¶¶ 5-8.] In pertinent part, the arbitration agreement provides: ARTICLE 1: It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contractual agreement were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered, and will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contractual agreement, by entering into it, are giving up their constitutional right to have such a dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.

ARTICLE 2: I understand and voluntarily agree that this Arbitration Agreement binds me and anyone else who may have a claim arising out of or related to all treatment or services provided by the physician, Dr. Pavlo Isak MD or practice providers including physician assistant Mariaelena Gavilanes, PA-C of E&G Aesthetic Institute, Inc. practicing as “E&G Aesthetic Institute” including any spouse or heirs of the patient and any children, whether born or unborn at the time of the occurrence giving rise to any claim. This includes, but is not limited to, all claims for personal injury, actions to collect debt, monetary damages exceeding the jurisdictional limit of the small claims court, including, without limitation, suits for loss of consortium, wrongful death, emotional distress, or punitive damages.
....

ARTICLE 3: I understand and agree that this Patient-Physician and Patient-Practice Arbitration Agreement binds me, my heirs, assigns or personal representatives

[Crespo Dec., Ex. 2. (Highlighting added.)]

In the paragraph immediately above Plaintiff’s decedent’s signature of the Arbitration Agreement, the document includes: “NOTICE: BY SIGNING THIS CONTRACTUAL AGREEMENT YOU ARE AGREEING TO HAVE ANY ISSUE OF MEDICAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL. SEE ARTICLE 1 OF THIS AGREEMENT. “

[*Id.*]

Legal Standard

Code Civ. Proc. § 1281.2 provides, *inter alia*:

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...”

(Emphasis supplied.)

CRC 3.1330 requires that a petition to compel arbitration or to stay proceedings pursuant to Code Civ. Proc. §1281.2 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be attached to the petition and incorporated by reference.

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (*see* § 1281.2, subs. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.

While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Id.* at 739; *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th at 1170; *Greenspan v. LADT, LLC.* (2010) 185 Cal.App.4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 990 (“The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration”).

Discussion

Was There an Agreement to Arbitrate?

Defendants have established, and Plaintiff does not dispute, that Plaintiff's decedent signed an arbitration agreement that encompasses the malpractice claims. [Crespo Decl., Ex 2.]

Rather, Plaintiff contends that *she* did not sign that arbitration agreement and is not bound by its terms as to her own statutory claim for wrongful death. The law is to the contrary.

In *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, the California Supreme Court addressed whether arbitration agreements between health care providers and patients bind spouses and children of the patients who file wrongful death actions. *Id.* at 844-845. The Court held that if a patient agreed to arbitrate medical malpractice disputes in compliance with the arbitration provision of the Medical Injury Compensation Reform Act (MICRA) (codified as Code Civ. Proc., § 1295), the patient-provider agreement may bind the patient's heirs in a wrongful death action, even if the heirs themselves never agreed to arbitration. *Ruiz*, 50 Cal.4th at 849–850.

The Supreme Court found that Code Civ. Proc. § 377.60 “creates a new cause of action in favor of the heirs as beneficiaries, based upon their own independent pecuniary injury suffered by loss of a relative, and distinct from any the deceased might have maintained had he survived. [Citations.]” *Id.* at 844. But, the Court went on to explain, “wrongful death plaintiffs may be bound by agreements entered into by decedent that limit the scope of the wrongful death action. Thus, for example, although an individual involved in a dangerous activity cannot by signing a release extinguish his heirs' wrongful death claim, the heirs will be bound by the decedent's agreement to waive a defendant's negligence and assume all risk.” *Id.* at 851-852.

The agreement in *Ruiz* provided that it applied to parties whose claims arose out of or related to the treatment and services provided including the spouse, heirs, and children. *Id.* at 841-842. The Court held it could be enforced against the decedent's children: “a contrary holding would defeat Podolsky's reasonable contractual expectations.” *Id.* at 854.

In a more recent opinion, the California Supreme Court affirmed its conclusions in *Ruiz*. *Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 374-375.

In short, by its terms and under the law, the arbitration agreement is binding on Plaintiff.

Plaintiff's citation to *Daniels v. Sunrise Senior Living, Inc.* (2013) 212 Cal.App.4th 674 is not helpful as that was not a *medical malpractice* wrongful death case.

Plaintiff also contends that the arbitration agreement does not comply with Code of Civil Procedure section 1295(b). According to Plaintiff, as presented by Defendants, the required warning above the signature line is not in bold type or red type. Plaintiff makes no claim, however, that her decedent did not read or see the warning prior to signing or was unaware that he was signing an arbitration agreement and giving up his right to a jury or court trial.

This leaves Plaintiff's final argument that the arbitration agreement is unconscionable.

Is the Arbitration Agreement Unenforceable for Unconscionability?

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. Civ. Code §1670.5. Whether a provision is unconscionable is a question of law. Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal.App.4th 846, 851.

The core concern of unconscionability doctrine is the absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party. *Sonic Calabasas A, Inc. v. Moreno*, (2013) 57 Cal.4th 1109, 1145.

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal.App.4th 167, 174-175.

Procedural Unconscionability

Procedural unconscionability concerns the manner in which the contract was negotiated and the parties' circumstances at that time. It

focuses on the factors of oppression or surprise. *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.

Procedural unconscionability is often found in contracts of adhesion – i.e. standardized contracts which, imposed and drafted by the party of superior bargaining strength, relegate to the subscribing party only the opportunity to adhere to the contract or to reject it. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113. “When the weaker party is presented the clause and told to take it or leave it without the opportunity for meaningful negotiation, oppress, and therefore procedural unconscionability, are present.” *Szetela v. Discover Bank* (2002) 97 Cal.App.4th 107, 114. *See also Lhotka v. Geographic Expeditions, Inc.* (2010) 181 Cal.App.4th 816, 821-824 (finding take it or leave it contract for recreational activity procedurally unconscionable even though activity not a “necessity”). A “meaningful opportunity to negotiate or reject the terms of a contract requires, at a minimum, that a party have reasonable notice of the opportunity to negotiate or reject the terms of the contract and an actual, meaningful, and reasonable choice to exercise that discretion. *Circuit City Stores, Inc. v. Mantor* (9th Cir. 2003) 335 F.3d 1101, 1106.

“Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice.” *Crippen v. Central Valley RV Outlet* (2004) 124 Cal.App.4th 1159, 1165 (citation omitted). “When the weaker party is presented the clause and told to ‘take it or leave it’ without the opportunity for meaningful negotiation, oppression, and therefore procedural unconscionability, are present.” *Szetela v. Discover Bank* (2002) 97 Cal.App.4th 1094, 1100 (citation omitted).

Surprise usually involves supposedly agreed-upon terms buried in complex documentation. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114.

Here, Plaintiff asserts that the agreement is adhesive because it is a form agreement and that Defendants have not established that she (or her decedent) had sufficient time to review it or the rules cited in it.

But Plaintiff has presented no evidence that her decedent could not have negotiated the terms of the agreement. And it is her burden of proof to establish surprise or oppression – no Defendants’ to negate it. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 (“a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense”); *Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak*

Street (1983) 35 Cal.3d 312, 320 (“any doubts concerning the scope of arbitrable issues should be resolved in favor of arbitration, whether the problem at hand is the construction of the contract language itself or an allegation of waiver, delay, or a like defense to arbitrability”).

In contrast, Defendants have presented a two page document, that was part of a larger package of 19 pages, and evidence that Defendant Gavilanes reviewed the documents with Plaintiff’s decedent and was available to answer questions. [Gavilanes Decl., ¶¶ 5-6.]

Plaintiff has not made a showing of procedural unconscionability.

Substantive Unconscionability

[S]ubstantive unconscionability focuses on the one-sidedness of the contract terms. In the context of an arbitration agreement, the agreement is unconscionable unless there is a “ ‘modicum of bilaterality’ ” in the arbitration remedy. [Citation.] “Although parties are free to contract for asymmetrical remedies and arbitration clauses of varying scope, ... the doctrine of unconscionability limits the extent to which a stronger party may, through a contract of adhesion, impose the arbitration forum on the weaker party without accepting that forum for itself.” [Citation.] *Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 854.

To be substantively unconscionable, contract terms must be “unduly harsh, oppressive, or one-sided.” *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 403.

Plaintiff argues that the arbitration agreement signed by her decedent is unconscionable as to her because it would strip her of her independent statutory right to a wrongful death action without her consent.

First, it does not strip the Plaintiff of the action, but it does mandate an arbitral forum rather than a court.

Second, this is the result mandated by the California Supreme *Ruiz* and confirmed by it in *Holland*. If Plaintiff’s argument were sufficient to avoid enforcement of an arbitration agreement, *Ruiz* would be meaningless. That is a decision this court cannot make.

Accordingly, the motion to compel arbitration is granted, the case is stayed. ADR Review is set on March 1, 2027 at 9:00 a.m.

Defendant to give notice.